

**Petitioner**

**Jennifer Gratz**

**Respondent**

**Lee Bollinger et al.**

**Location**

**1220 Student Activities Building - Undergraduate Admissions**

**Docket no.**

**02-516**

**Decided by**

**[Rehnquist Court](#)**

**Lower court**

**Federal district court**

**Citation**

**[539 US 244 \(2003\)](#)**

**Argued**

**Apr 1, 2003**

**Decided**

**Jun 23, 2003**

**Granted**

**Dec 2, 2002**

**Advocates**

**[Kirk O. Kolbo](#) *Argued the cause for the petitioners***

**[John A. Payton](#) *Argued the cause for the respondent***

**[Theodore B. Olson](#) *as amicus curiae, supporting the Petitioners***

**Facts of the case**

The University of Michigan's Office of Undergraduate Admissions (OUA) considers a number of factors in its evaluative process, such as high school grades, standardized test scores, curriculum strength, alumni relationships, geography, and leadership. The OUA also considers race and admits virtually every qualified applicant from certain groups

determined to be “underrepresented minorities.” Beginning in 1998, the OUA used a point system in which students were awarded an additional 20 points for being a member of an underrepresented minority, and beginning in 1999, the University established an Admissions Review Committee to provide an additional level of consideration.

In 1995, Jennifer Gratz and Patrick Hamacher both applied for admission to the University of Michigan’ College of Literature, Science, and the Arts (LSA) as residents of the state of Michigan. Both are of Caucasian descent. Both were denied admission and told that, although they were qualified, they were not competitive enough applicants to be admitted on first review. In October 1997, Gratz and Hamacher filed a class action suit against the University, the LSA, Lee Bollinger, and James Duderstadt. They argued that the admission procedure discriminated against certain racial and ethnic groups in violation of the Equal Protection Clause of the Fourteenth Amendment and Title VI of the Civil Rights Act of 1964. The district court held that the respondents had shown that a racially and ethnically diverse student body produced significant academic benefits but that the admission policies of 1995-1998 were problematic because they amounted to “holding seats” for certain minority groups. Therefore, the court granted summary judgment for the petitioners with respect to the admissions policies for 1995-1998 and for the respondents with respect to the policy that began in 1999. The U.S. Court of Appeals for the Sixth Circuit heard this case the same day as *Grutter v. Bollinger*, a similar case, and upheld the University’s admission policies in that case. The petitioners in this case then asked the Court to grant certiorari, despite the lack of opinion from the lower court, to resolve the issue.

#### Question

Did the University of Michigan’s use of racial preferences in undergraduate admissions violate the Equal Protection Clause of the Fourteenth Amendment and Title VI of the Civil Rights Act of 1964?

#### Conclusion

##### *Sort:*

- by seniority
- by ideology
- 6–3 decision for Gratz  
majority opinion by William H. Rehnquist
- Yes. Chief Justice William H. Rehnquist delivered the opinion for the 6–3 majority. The Court held that the OUA’s policies were not sufficiently narrowly tailored to meet the strict scrutiny standard. Because the policy did not provide individual consideration, but rather resulted in the admission of nearly every applicant of “underrepresented minority”

status, it was not narrowly tailored in the manner required by previous jurisprudence on the issue.

- In her concurring opinion, Justice Sandra Day O'Connor wrote that the record showed that the only individualized consideration in the admissions process came through the Admissions Review Committee. Because the Committee played only a small part in the overall admissions process, it was not sufficient to satisfy the strict scrutiny standard. Justice Clarence Thomas wrote a separate concurring opinion in which he argued that the Equal Protection Clause prohibits any racial discrimination for the purposes of higher education admission. The admission policy in question failed because it did not allow for sufficient consideration of non-racial factors in determining the admissibility of a candidate from an underrepresented minority group. In his separate opinion concurring in the judgment, Justice Stephen Breyer wrote that, in cases dealing with the Equal Protection Clause, the Court should distinguish between policies of inclusion and policies of exclusion because the former are much more likely to prove consistent with the intent of the Clause.
- Justice John Paul Stevens wrote a dissenting opinion in which he argued that, because neither of the petitioners could receive any benefit from the relief being requested, precedent required that the case be dismissed. While they are entitled to relief for past wrongs, they cannot seek injunctive relief to prevent future harms to other parties. Justice David Souter joined in the dissent. In his separate dissent, Justice Souter wrote that, by making race only one of a number of factors to be considered, the admissions policy meets the requirements established by previous Equal Protection Clause jurisprudence. Because the point system and the Admissions Review Committee operate in conjunction with each other, there cannot be the "holding of seats" phenomenon that the majority opinion fears. Justice Ruth Bader Ginsburg joined in the dissent. Justice Ginsburg also wrote a separate dissenting opinion in which she argued that, because there is no evidence that the OUA policies attempt to limit or decrease enrollment by any particular racial or ethnic group and there is no evidence of saving seats, the policies do not violate the Equal Protection Clause. Racial information about an applicant can be useful in admission considerations because it often serves to show what a student has accomplished and why the student is worthy of admission. Justice Souter joined in the dissent.